

# MASTER SERVICES AGREEMENT

This Agreement is entered into as of Apr 2, 2024 (the "Effective Date") by and between Northwind Manufacturing, with its principal place of business in Columbus, OH ("Client"), and Delta Systems, with its principal place of business in Atlanta, GA ("Provider"). The parties agree as follows:

## 1. Entire Agreement

This Agreement, together with its exhibits, constitutes the entire agreement between Northwind Manufacturing and Delta Systems with respect to its subject matter and supersedes all prior or contemporaneous understandings. Any amendment must be in writing and signed by both parties.

## 2. Independent Contractor

Delta Systems is an independent contractor and nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the parties. Delta Systems is solely responsible for its own taxes, insurance, and employee obligations.

## 3. Confidentiality

Each party agrees to hold in strict confidence all non-public information disclosed by the other party in connection with this Agreement, and to use such information solely to perform its obligations hereunder. This obligation survives termination of this Agreement for a period of 24 months.

## 4. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. The parties consent to the exclusive jurisdiction of the state and federal courts located in New York.

## 5. Intellectual Property

All work product created by Delta Systems specifically for Northwind Manufacturing under this Agreement shall be the sole property of Northwind Manufacturing upon full payment of the applicable fees. Delta Systems retains ownership of its pre-existing materials, tools, and methodologies.

## 6. Compensation

In consideration of the Services, Northwind Manufacturing shall pay Delta Systems fees not to exceed \$41,000 per invoice period. All invoices are payable within 45 days of receipt. Amounts unpaid after the due date accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law.

## 7. Scope of Services

Delta Systems shall provide the services described in Exhibit A (the "Services") to Northwind Manufacturing in a professional and workmanlike manner, consistent with industry standards. Any changes to the scope of the Services must be agreed in writing by both parties before work begins.

## 8. Termination

Either party may terminate this Agreement upon 45 days' written notice to the other party. Either party may terminate immediately upon a material breach by the other party that remains uncured 45 days after written notice of the breach.

*IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.*

James Weber, Northwind Manufacturing

